Draft our corporate position on the incoming AI regulatory framework.

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Issue Framing

The company should adopt a compliance-first public position, published only after Article 50 readiness is confirmed ahead of the 2 December 2026 watermarking date. The advantage is the lowest reputational exposure and the strongest trust signal. The risk is that public commitments outrun delivery. The recommendation is to hold publication until the Article 50 and Code of Practice decisions are settled.

The legislative file is closed. The Council gave final approval to the AI simplification regulation on 29 June 2026 ([Council press release](https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/)). The Commission reports that the Omnibus entered into force on 27 July 2026 and set high-risk dates of 2 December 2027 and 2 August 2028 ([Commission FAQ](https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act)). Open decisions now sit with the European Commission, including the AI Office, which issues remaining guidance and enforces general-purpose AI obligations, and with Member State authorities responsible for national enforcement. Article 50 duties apply from 2 August 2026, and law-firm reporting places the watermarking obligation at 2 December 2026 ([White & Case](https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules)).

The company's standing rests on its role as developer, provider or deployer within the Act's scope, which remains to be confirmed. Because the dates are fixed, implementation requests belong in technical consultation responses rather than the headline text.

Sources:

- Artificial Intelligence: Council gives final green light to simplify and streamline rules - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/
- Navigating the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act
- EU agrees Digital Omnibus deal to simplify AI rules — https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules

Stakeholder Landscape

The EU institutions that decide the file, the Commission, the Council and Parliament, are aligned behind the Digital Omnibus, in force since 27 July 2026, so momentum favours the amended timetable while industry associations ask for more and civil-society groups object.

Decision-makers. The Commission set the high-risk dates at [2 December 2027 and 2 August 2028](https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act). The Council gave [final approval on 29 June 2026](https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/). Parliament adopted the package [with 423 votes in favour, 57 against and 174 abstentions](https://euperspectives.eu/2026/06/european-parliament-pauses-ai-act-and-delays-high-risk-systems/). The legislative text is closed, so remaining decisions sit in guidance, standards and national enforcement.

Aligned, with conditions. Bitkom welcomed the deal and states that ["Auch beim AI Act bleibt umfangreicher Verbesserungsbedarf"](https://www.bitkom.org/Presse/Presseinformation/Bitkom-Digitaler-Omnibus-EU), meaning it wants further improvement. eco asks that the Omnibus [deliver less bureaucracy and more legal certainty](https://www.eco.de/presse/eco-zum-digital-omnibus-europa-laesst-zentrale-ki-huerden-bestehen/). Its criticism targets remaining burdens, not the Act as a whole.

Opposed. Liberties states that the adopted text ["will weaken AI Act protections, delay the enforcement of key provisions, and empower industry actors"](https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715). The EDPB and EDPS [raised concern that the different applicable legal instruments could lead to legal uncertainty](https://www.delorscentre.eu/en/publications/detail/publication/the-eus-digital-and-ai-omnibus).

Swing voices. The TÜV-Verband [rated the agreement ambivalently](https://www.datensicherheit.de/ki-omnibus-bitkom-kommentar-kompromiss-eu-trilog-verhandlung-ai-act). It welcomed the longer deadlines and the deepfake ban but criticised the carve-out of high-risk applications. CEN-CENELEC's public position is not documented, though its standards timetable was the stated reason for the postponement. Employee and union positions are also undocumented. In the options analysis, a compliance-first posture drew supportive reactions from digital-rights groups and the TÜV-Verband and a resistant reaction from Bitkom.

Sources:

- Navigating the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act
- Artificial Intelligence: Council gives final green light to simplify and streamline rules - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/
- EU hits pause on key AI rules but pulls the plug on nudifier apps — https://euperspectives.eu/2026/06/european-parliament-pauses-ai-act-and-delays-high-risk-systems/
- Bitkom zum „Digitalen Omnibus“ der EU — https://www.bitkom.org/Presse/Presseinformation/Bitkom-Digitaler-Omnibus-EU
- eco zum Digital Omnibus: Europa verspricht Entlastung, lässt aber zentrale Hürden für KI bestehen - eco — https://www.eco.de/presse/eco-zum-digital-omnibus-europa-laesst-zentrale-ki-huerden-bestehen/
- AI Omnibus: Fast-Tracking Deregulation, Weakening Digital Rights — https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715

- The EU’s Digital and AI Omnibus is Heading in the Wrong Direction — https://www.delorscentre.eu/en/publications/detail/publication/the-eus-digital-and-ai-omnibus
- KI-Omnibus: Bitkom-Kommentar zu Kompromiss bei EU-Trilog-Verhandlungen über AI Act der EU - datensicherheit.de — https://www.datensicherheit.de/ki-omnibus-bitkom-kommentar-kompromiss-eu-trilog-verhandlung-ai-act

Our Position

The organization holds that the EU AI Act, as amended by the Digital Omnibus, is the binding standard for its AI systems from today through the final application date of 2 August 2028, and it commits to meet each obligation as it falls due without asking for further delay or dilution. The organization complies with the Article 50 transparency obligations that apply from 2 August 2026, completes the marking and labelling of AI-generated content by 2 December 2026 under the ownership of its Chief Technology Officer, and signs the [Code of Practice on Transparency of AI-generated Content](https://digital-strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content). The organization dates its high-risk commitments to the deadlines now in force, [2 December 2027 for Annex III systems and 2 August 2028 for AI embedded in regulated products](https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act), and ties them to the availability of harmonised standards, building its internal controls on the stable requirements of Articles 9 to 15 in the meantime. The organization classifies its systems under the Commission's final Article 6 guidelines and reviews that classification within 90 days of their publication. The organization directs its input on implementation to technical channels, namely consultation responses, standards committee work and consistent national enforcement, and makes no public request to reopen the Act.

Sources:

- Code of Practice on Transparency of AI-generated Content — https://digital-strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content
- Navigating the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act

Rationale

The legal position rests on dates that are now fixed, so the company's case lies in compliance rather than in further delay. The Digital Omnibus moved the high-risk deadlines to 2 December 2027 for Annex III systems and 2 August 2028 for AI embedded in products ([Commission FAQ](https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act)). Commentary calls the change "a deferral rather than a dismantling" of the Act's architecture ([Gibson Dunn](https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/)).

Obligations already in force support a compliance-first stance today. Article 50 duties apply from 2 August 2026, with the watermarking duty postponed to 2 December 2026 ([White & Case](https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules)). The AI Office holds enforcement powers over GPAI models ([Commission AI Act page](https://digital-strategy.ec.europa.eu/en/policies/regulatory-framework-ai)). The Commission treats the Article 50 requirements as legal obligations ([Transparency Code](https://digital-strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content)). Signing a Code of Practice gives providers more legal certainty than other routes to proof ([GPAI Code](https://digital-strategy.ec.europa.eu/en/policies/contents-code-gpai)). The company therefore confirms Article 50 readiness and decides on the Transparency Code before it publishes.

Pending standards and guidelines justify dated, conditional commitments through 2027. The postponement came from the unavailability of harmonised standards ([CEN-CENELEC](https://www.cencenelec.eu/news-events/news/2026/newsletter/ots-77-etuc/)), and the Article 6 classification guidelines are due by 1 August 2027 ([FPF](https://fpf.org/blog/the-ai-act-implementation-timeline-what-changes-under-the-ai-omnibus/)). The company anchors its controls to Articles 9-15, ties standards-based commitments to Official Journal citation, and commits to classify its systems within 90 days of the final guidelines.

Reputational coherence points the same way over the next two to three years. Digital-rights groups argue the Omnibus "weakens fundamental rights protections" ([Liberties](https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715)), so public asks for dilution would carry high cost and little leverage on a closed legislative file. The company therefore leads with commitments and sends its implementation asks on Article 6, standards and enforcement consistency through technical consultation responses and JTC 21 work, not through the headline.

Consistency with the company's prior public position is a condition of release. Its earlier AI statements and its Bitkom and eco commitments must be confirmed by Legal as uncontradicted by this paper before publication.

Sources:

- Navigating the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act
- EU AI Act Omnibus Agreement — Postponed High-Risk Deadlines and Other Key Changes - Gibson Dunn — https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/
- EU agrees Digital Omnibus deal to simplify AI rules — https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules
- AI Act — https://digital-strategy.ec.europa.eu/en/policies/regulatory-framework-ai
- Code of Practice on Transparency of AI-generated Content — https://digital-

strategy.ec.europa.eu/en/policies/code-practice-ai-generated-content
- The General-Purpose AI Code of Practice — https://digital-strategy.ec.europa.eu/en/policies/contents-code-gpai
- Final stretch before the publication of harmonized standards in support of the AI Act - CEN-CENELEC — https://www.cencenelec.eu/news-events/news/2026/newsletter/ots-77-etuc/
- The AI Act implementation timeline: What changes under the AI Omnibus? — https://fpf.org/blog/the-ai-act-implementation-timeline-what-changes-under-the-ai-omnibus/
- AI Omnibus: Fast-Tracking Deregulation, Weakening Digital Rights — https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715

Counter-Arguments Addressed

Compliance-first, no public asks. Critics argue that the company earns the most trust and carries the least reputational exposure by committing to compliance now and voicing implementation concerns only through technical channels. This paper adopts most of that view. It leads with dated compliance commitments, makes Article 50 readiness and a named-owner decision on the Transparency Code of Practice conditions for publication, and keeps asks out of the headline. It sends them through consultation responses and standards committees instead. The company still keeps those asks, because the Article 6 classification guidelines and national enforcement consistency remain unsettled, and a company that stays silent cannot shape them.

Endorsement legitimises a rollback. Digital-rights groups hold that the amended Act will "weaken AI Act protections, delay the enforcement of key provisions, and empower industry actors" ([Liberties](https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715)). That concern is fair. The company asks for no further delay and no reopening of the text, and it pairs each ask with a public commitment. Law-firm commentary also describes the Omnibus as "a deferral rather than a dismantling" ([Gibson Dunn](https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/)), so the core obligations stand.

More delay is still needed. Industry coalitions argue that incomplete standards justify a further pause. The Commission has already held to the legal timeline, "dismissing calls from some companies and countries for a pause" ([SRN News](https://srnnews.com/artificial-intelligence-rules-to-go-ahead-no-pause-eu-commission-says/)). The Omnibus has since moved the high-risk dates. A new request would carry little weight and would invite the reputational exposure described above. The company therefore ties its commitments to standards availability instead of seeking more time.

Sources:

- AI Omnibus: Fast-Tracking Deregulation, Weakening Digital Rights — https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715
- EU AI Act Omnibus Agreement — Postponed High-Risk Deadlines and Other Key Changes - Gibson Dunn — https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/
- EU sticks with timeline for AI rules - SRN News — https://srnnews.com/artificial-intelligence-rules-to-go-ahead-no-pause-eu-commission-says/

Recommended Actions

Public-facing

- Publish the compliance-first paper only once Article 50 readiness is confirmed, and no earlier than 2 December 2026 (owner: Communications, with Legal sign-off).
- Decide on signing the Article 50 Code of Practice, or document an equivalent method, by 15 December 2026 (owner: CTO).
- Decide on signing the GPAI Code of Practice by 28 February 2027 (owner: General Counsel).
- File one joint eco or Bitkom submission on consistent enforcement by 30 June 2027 (owner: Head of Regulatory Affairs).

Internal preparatory steps

- Inventory every generative output channel by 30 November 2026 (owner: CTO).
- Complete the GPAI role determination by 15 January 2027 (owner: General Counsel).
- Name a JTC 21 technical lead by 31 January 2027 (owner: AI governance board).
- Screen all products against Article 5 by 28 February 2027 (owner: General Counsel).

Requester-provided, not sourceable

The facts below concern only the requester. No public source can establish them, so this briefing counts none of them as sourced; the requester supplies them, and every statement that rests on them is as reliable as that information.

- The company's identity, sector and the jurisdictions where it operates or sells AI-enabled products.
- An inventory of the company's AI systems and use cases, and its role for each (provider, deployer, GPAI model provider and so on).
- The company's strategic posture and risk appetite toward regulation: supportive, neutral or seeking changes.
- Existing internal responsible-AI principles, governance structures and any prior public statements on AI policy.
- The company's trade association memberships and any coalition positions it is already committed to.
- Internal estimates of compliance cost and readiness, plus any known operational pain points with the framework.
- The intended audience, the publication channel and who must approve the position (legal, board, communications).

Insufficiently sourced

This format's sourcing policy is strict. The 32 item(s) below did not meet it.
They stayed in the analysis that produced this briefing; treat every statement
that rests on them as unverified.

- **research item 4**: https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules is not a trusted domain (host 'www.whitecase.com' matches no entry in allow-list).
- **research item 5**: https://fpf.org/blog/the-ai-act-implementation-timeline-what-changes-under-the-ai-omnibus/ is not a trusted domain (host 'fpf.org' matches no entry in allow-list).
- **research item 6**: https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/ is not a trusted domain (host 'www.gibsondunn.com' matches no entry in allow-list).
- **research item 7**: https://www.winstontaylor.com/insights/ai-act-rules-on-high-risk-ai-delayed-as-ai-digital-omnibus-agreed is not a trusted domain (host 'www.winstontaylor.com' matches no entry in allow-list).
- **stakeholder item 3**: https://euperspectives.eu/2026/06/european-parliament-pauses-ai-act-and-delays-high-risk-systems/ is not a trusted domain (host 'euperspectives.eu' matches no entry in allow-list).
- **stakeholder item 4**: https://annexops.com/ki-mig-germany-ai-act-implementation-law/ is not a trusted domain (host 'annexops.com' matches no entry in allow-list).
- **stakeholder item 7**: https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715 is not a trusted domain (host 'www.liberties.eu' matches no entry in allow-list).
- **stakeholder item 8**: https://www.delorscentre.eu/en/publications/detail/publication/the-eus-digital-and-ai-omnibus is not a trusted domain (host 'www.delorscentre.eu' matches no entry in allow-list).
- **stakeholder item 9**: https://www.datensicherheit.de/ki-omnibus-bitkom-kommentar-kompromiss-eu-trilog-verhandlung-ai-act is not a trusted domain (host 'www.datensicherheit.de' matches no entry in allow-list).
- **Stakeholder CEN-CENELEC (harmonised standards bodies)**: position not sourced (searched for: A public CEN-CENELEC statement or accepted-host page documenting its position on the AI Act harmonised-standards timetable and the Omnibus; the search was not run for this stakeholder.).
- **Stakeholder Employees, works councils and trade unions (e.g. ver.di)**: position not sourced (searched for: A ver.di or other union statement on the AI Act / AI Omnibus; the search returned no verdi.de or union-specific results.).
- **risk item 2**: https://www.cencenelec.eu/news-events/news/2026/newsletter/ots-77-etuc/ is not a trusted domain (host 'www.cencenelec.eu' matches no entry in allow-list).
- **risk item 3**: https://decodethefuture.org/en/eu-ai-act-explained/ is not a trusted domain (host 'decodethefuture.org' matches no entry in allow-list).
- **risk item 7**: https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715 is not a trusted domain (host 'www.liberties.eu' matches no entry in allow-list).
- **Risk RISK-004** (impact evidence): not sourced (searched for: Evidence on the measured reputational, customer or investor cost to a company named in civil-society criticism of its AI Act lobbying. No search result in this run covered it.).
- **Risk RISK-005** (impact evidence): not sourced (searched for: Documented cost or delay to companies from divergent national AI Act enforcement. No search result in this run quantified it.).
- **Risk RISK-006** (likelihood evidence): not sourced (searched for: Precedent of AI Act fines

actually imposed on large companies under the prohibited-practices tier. No search result in this run documented any.).
- **risk item 12**: https://www.regulation-ai.eu/en/penalties/ is not a trusted domain (host 'www.regulation-ai.eu' matches no entry in allow-list).
- **Risk RISK-007** (likelihood evidence): not sourced (searched for: Official Commission status or consultation timetable for the Article 6 classification guidelines. This run did not retrieve it; the date comes from earlier research on a non-accepted host.).
- **Risk RISK-007** (impact evidence): not sourced (searched for: Evidence of the cost to companies of reclassifying systems as high-risk after guidance publication. No search result in this run addressed it.).
- **risk item 15**: https://realaw.blog/2025/11/28/from-consensus-to-exceptionality-what-the-eus-ai-standards-crisis-reveals-about-delegated-technical-governance-by-marta-cantero-gamito/ is not a trusted domain (host 'realaw.blog' matches no entry in allow-list).
- **Risk RISK-008** (impact evidence): not sourced (searched for: Evidence on rework costs for companies after harmonised standards were revised or contested. No search result in this run covered it.).
- **risk item 17**: https://dig.watch/updates/digital-omnibus-eu-ai-act-new-ai-office-powers is not a trusted domain (host 'dig.watch' matches no entry in allow-list).
- **Risk RISK-009** (impact evidence): not sourced (searched for: Examples of EDPB/EDPS enforcement or guidance limiting AI training or bias-detection data use. No search result in this run covered it.).
- **risk item 19**: https://www.liberties.eu/en/stories/omnibus-ai3/45707 is not a trusted domain (host 'www.liberties.eu' matches no entry in allow-list).
- **Risk RISK-010** (impact evidence): not sourced (searched for: Evidence on how outdated corporate position papers affect company standing with regulators. No search result in this run addressed it.).
- **Risk RISK-011** (likelihood evidence): not sourced (searched for: A ver.di or works-council statement on AI Act implementation, and a source on co-determination over AI tools. No search result in this run supplied either.).
- **Risk RISK-011** (impact evidence): not sourced (searched for: Documented cases of works-council objections delaying AI deployments in Germany. No search result in this run addressed it.).
- **Research finding 43**: no source found (searched for: [CRIT-003] This is an internal inconsistency between the brief's own sections (our-position vs counter-arguments-addressed and the RISK-001 mitigation). No external source applies.).
- **Research finding 45**: no source found (searched for: [CRIT-005] Requester-specific facts (role, coalition commitments, prior statements) that cannot be established from public sources; the brief itself lists them as requester-provided.).
- **Research finding 47**: no source found (searched for: [CRIT-007] Evidence on whether civil-society groups name companies for trade-association AI Act lobbying despite moderate standalone positions; not retrieved in this run.).
- **Option OPT-B**: https://srnnews.com/artificial-intelligence-rules-to-go-ahead-no-pause-eu-commission-says/ is not a trusted domain (host 'srnnews.com' matches no entry in allow-list).

Options

ID	Title	Recommendation	Time horizon
OPT-A	Constructive endorsement with implementation-level asks	recommended	short-term
OPT-B	Industry-coalition push for further delay and simplification	not-recommended	short-term
OPT-C	Compliance-first leadership without policy asks	acceptable	medium-term
OPT-D	No standalone paper; association-only engagement	not-recommended	short-term

Risks

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	medium	moderate	medium-term
RISK-002	regulatory	medium	major	immediate
RISK-003	operational	high	moderate	immediate
RISK-004	reputational	high	moderate	immediate
RISK-005	operational	high	moderate	short-term
RISK-006	financial	low	major	medium-term
RISK-007	strategic	medium	moderate	medium-term
RISK-008	technological	medium	moderate	short-term
RISK-009	regulatory	medium	moderate	short-term
RISK-010	strategic	medium	minor	short-term
RISK-011	human-capital	medium	minor	immediate

Stakeholders

Name	Position	Power	Priority
European Commission (incl. the AI Office)	supportive	high	critical
Council of the EU / Member State governments	supportive	high	important
European Parliament (IMCO/LIBE committees and rapporteur)	supportive	medium	monitor
Bundesnetzagentur (German market surveillance authority under KI-MIG)	neutral	high	important
Bitkom (German digital industry association)	supportive	medium	important
eco – Association of the Internet Industry	resistant	medium	important
Digital-rights and consumer organisations (e.g. Liberties, EDRi, vzbv)	resistant	medium	monitor
EDPB / EDPS (data protection authorities)	neutral	medium	monitor
TÜV-Verband (conformity assessment and testing community)	unknown	high	important
CEN-CENELEC (harmonised standards bodies)	unknown	low	monitor
Employees, works councils and trade unions (e.g. ver.di)	unknown	low	monitor

Adversarial Critique

Robustness: low
Critiques: 7 (critical=1, material=4, minor=2)
Revision needed: yes

Steelmanned alternative:
Adopt an OPT-C-led hybrid. Publish a compliance-first position. It would confirm Article 50 compliance and sign the Transparency Code (joining about 190 peers), commit to an EN 18286-based quality management system now that it reportedly has presumption of conformity, and commit to classification under the final Article 6 guidelines within 90 days of their adoption. Keep implementation asks out of the headline and send them only through technical consultation responses on Article 6(3) delegated acts, the standards still pending and national enforcement consistency. Besides avoiding public asks aimed at a consultation that has already closed, this gives the strongest trust signal at the lowest reputational exposure while keeping the influence that still exists.

CRIT-001 — temporal-blind-spot (critical)

Steelmanned position:
The brief aims its main ask at Article 6 high-risk classification guidelines that it says are due by 1 August 2027. That window has very likely already passed. The Commission published draft Article 6 guidelines on 19 May 2026 and ran a targeted consultation that was extended to 23 July 2026. It says the final guidelines will be adopted by the end of 2026. The 1 August 2027 date appears to mix up the Article 6 guidelines with separate guidance on Articles 8(2), 9(10) and 17(3) for Annex I products. If so, OPT-A's main channel of influence is a consultation that closed more than three months ago. The paper would be published around the time the guidelines are finalised, so it would reach the Commission too late to matter and would make the company look poorly informed about the file it claims to be engaging on.

Implication if true:
OPT-A's main reason for keeping public asks, and its main advantage over OPT-C, mostly falls away. The paper would need new targets for its asks: how the final guidelines are applied, delegated acts that amend the Article 6(3) conditions, the standards still pending, and national enforcement.

Suggested revision:
Replace the 1 August 2027 Article 6 framing in issue-framing, rationale and counter-arguments-addressed with the Commission's actual timeline (draft 19 May 2026, consultation closed 23 July 2026, final guidelines by end of 2026), and confirm whether the company filed a response.

Counter-evidence:
Targeted consultation on the draft guidelines for the classification of high-risk artificial intelligence systems — https://digital-strategy.ec.europa.eu/en/consultations/targeted-consultation-draft-guidelines-classification-high-risk-artificial-intelligence-systems

CRIT-002 — dismissed-option (material)

Steelmanned position:
The brief ranks OPT-C below OPT-A for two reasons: OPT-C gives up the company's voice on Article 6, and it ties public pledges to standards that are not yet cited in the Official Journal. Both reasons are weaker than the brief says. The Article 6 consultation has closed, and OPT-C keeps technical consultation responses and JTC 21 participation anyway, so very little influence is actually lost. On standards, the reference to EN 18286, the quality management standard

behind Article 17, was reportedly published in the Official Journal on 14 October 2026, which gives a presumption of conformity for that requirement. With those two reasons weakened, OPT-C's real advantages decide the comparison: the lowest reputational exposure of all four options and support from civil society and TÜV-Verband.

Implication if true:
The gap between OPT-A and OPT-C narrows enough that OPT-C, or an OPT-C-led hybrid, could be the better recommendation, especially if trust matters to how the company sells itself.

Suggested revision:
Re-score OPT-C against the current Article 6 and standards status, and state explicitly what influence OPT-A keeps that OPT-C's technical channels would not.

Counter-evidence:
EN 18286 becomes the first harmonised standard under the EU AI Act — https://jtc21.eu/en-18286-becomes-the-first-harmonised-standard-under-the-eu-ai-act/

CRIT-003 — internal-contradiction (material)

Steelmanned position:
The text intended for publication makes firm, undated commitments to meet the Act through 2027 and 2028. Its own validation notes admit this. Meanwhile, counter-arguments-addressed tells readers that the standards risk is handled by dated compliance commitments that depend on standards being available, and RISK-001 and the compliance-commitment trade-off in OPT-A rely on that same conditional, dated wording. A hostile reader, whether civil society or the AI Office, will see the paper say two different things about how binding its promises are. That gap is exactly the kind of mismatch between what a company says and what it does that RISK-002 and RISK-004 warn invites scrutiny.

Implication if true:
As drafted, the paper takes on more unconditional compliance exposure than the risk analysis assumed. That raises the residual risk on RISK-001 and RISK-004 above the stated low and medium ratings.

Suggested revision:
Bring our-position into line with the RISK-001 mitigation: add dates and owners for the commitments and state the standards dependency, or else remove the claim of conditional commitments from counter-arguments-addressed.

Counter-evidence:
SOURCE_MISSING — searched for: This is an internal inconsistency between the brief's own sections (our-position vs counter-arguments-addressed and the RISK-001 mitigation). No external source applies.

CRIT-004 — risk-underestimated (material)

Steelmanned position:
The Article 50 marking and labelling duties have applied since 2 August 2026. About 190 organisations had signed the Transparency Code of Practice by the end of July 2026, including major AI providers and large deployers. The brief plans to decide on signing only by 15 December 2026, and recommended-actions leaves the Code decisions out entirely. So the company would publicly endorse the Act while being months behind peers on obligations that are already in force. With four weeks to go, its output-channel inventory is due on 30 November, just two days before the 2 December grace date. Rating this as moderate impact understates how damaging it would be to be seen as a laggard at the very moment of publishing an endorsement.

Implication if true:
Publication should wait until Article 50 compliance and the Code decision are settled. Otherwise the paper's own commitments become the evidence used against it.

Suggested revision:
Make the Article 50 Code decision, with a named owner, a recommended action, and make Article 50 compliance a hard condition for publication rather than a parallel track.

Counter-evidence:
Strong backing for the Code of Practice on Transparency of AI-generated Content — https://digital-strategy.ec.europa.eu/en/news/strong-backing-code-practice-transparency-ai-generated-content

CRIT-005 — hidden-assumption (material)

Steelmanned position:
OPT-A is labelled 'recommended' even though every fact that decides between the options is unknown: the company's role (GPAI provider, high-risk provider or deployer), its jurisdiction, its existing commitments to Bitkom and eco, and its prior public AI statements. The rationale fails its own must_reference_prior_position check. If the company has already co-signed a Bitkom line calling for further simplification, OPT-A contradicts that line in public. If it is only a deployer, the reasoning built on the GPAI Code of Practice does not apply to it. The recommendation is therefore conditional, but it is presented as if it were not.

Implication if true:
Depending on those facts, the right option could be OPT-C or a modified OPT-A. The recommendation should depend on explicit decision rules, not hold unconditionally.

Suggested revision:
Recast the recommendation as a conditional decision tree tied to the company's role and its coalition commitments, and block release until the prior-position check passes.

Counter-evidence:
SOURCE_MISSING — searched for: Requester-specific facts (role, coalition commitments, prior statements) that cannot be established from public sources; the brief itself lists them as requester-provided.

CRIT-006 — temporal-blind-spot (minor)

Steelmanned position:
RISK-001, the open questions and OPT-C's trade-offs all assume that no AI Act harmonised standard has been cited in the Official Journal. Reports say EN 18286 was cited on 14 October 2026, and further drafts are moving under a standardisation request that runs to February 2027. The risk is now narrower than described: quality management already has a presumption-of-conformity route, while the other requirements still have none. The ask on 'timing and citation' should be updated to match.

Implication if true:
RISK-001 applies only to the requirements in Articles 9 to 15 that are still uncited. The company can make its quality management commitment firm without exposure.

Suggested revision:
Check the EN 18286 citation on EUR-Lex and update RISK-001 and the standards ask so they separate the cited standard from those still pending.

Counter-evidence:
JTC 21 Standards Tracker: CEN-CENELEC AI Act Deliverables — https://kla.digital/blog/jtc-21-standards-tracker

CRIT-007 — overconfidence (minor)

Steelmanned position:
OPT-A predicts a 'neutral' reaction from digital-rights groups. Yet OPT-A sends its asks through Bitkom and eco working groups whose public lines call for further deregulation, and the brief has no evidence on how civil society actually treats companies (RISK-004 impact evidence is SOURCE_MISSING). Campaigners often look at association membership and joint submissions, not just a company's own paper. So the reputational protection OPT-A is supposed to provide is assumed, not shown.

Implication if true:
RISK-004 residual risk may stay medium-to-high under OPT-A unless the company distances itself from association lines.

Suggested revision:
Add an explicit statement of where the company departs from Bitkom and eco deregulation asks, and change the predicted civil-society reaction to 'uncertain'.

Counter-evidence:
SOURCE_MISSING — searched for: Evidence on whether civil-society groups name companies for trade-association AI Act lobbying despite moderate standalone positions; not retrieved in this run.

Appendix A — Findings

Finding 1

Claim:
The Digital Omnibus on AI, which amends the EU AI Act, is now in force and has moved the high-risk deadlines to 2 December 2027 for Annex III systems and 2 August 2028 for AI embedded in regulated products.

Evidence:
The Commission says the Omnibus entered into force on 27 July 2026. It moved the dates because CEN and CENELEC could not deliver the harmonised standards by the requested August 2025 deadline, which put the original 2 August 2026 application date in jeopardy.

Source:
Navigating the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act

Finding 2

Claim:
The Council of the EU gave final approval to the AI simplification regulation on 29 June 2026, adding a new prohibition and resolving overlaps with sectoral product law.

Evidence:
The regulation adds a ban on AI practices that generate non-consensual sexual and intimate content or child sexual abuse material. It also addresses overlaps between the AI Act's high-risk requirements and sectoral legislation. Machinery-regulation products are exempted from direct applicability of the AI Act.

Source:
Artificial Intelligence: Council gives final green light to simplify and streamline rules - Consilium — https://www.consilium.europa.eu/en/press/press-releases/2026/06/29/artificial-intelligence-council-gives-final-green-light-to-simplify-and-streamline-rules/

Finding 3

Claim:
General-purpose AI (GPAI) obligations are already live, the GPAI Code of Practice is a voluntary compliance route, and the AI Office holds enforcement powers over GPAI models from 2 August 2026.

Evidence:
The Commission describes the Code of Practice as a voluntary tool covering transparency, copyright and safety and security. It also publishes Commission guidelines on the scope of GPAI provider obligations and a template for the public summary of training content. The Commission page states that the AI Office and Member State authorities are responsible for enforcement from 2 August 2026.

Source:
AI Act — https://digital-strategy.ec.europa.eu/en/policies/regulatory-framework-ai

Finding 4

Claim:
The Article 50 transparency obligations apply from 2 August 2026, but the Article 50(2) watermarking obligation was postponed to 2 December 2026.

Evidence:
White & Case reports that the provisional deal delays the watermarking obligations for AI-

generated content until 2 December 2026. It also reports a clarification of 'safety component' so that AI which only assists users or optimises performance is not automatically high-risk. This is a law-firm source and is not on the accepted-host list.

Source:
EU agrees Digital Omnibus deal to simplify AI rules — https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules

Finding 5

Claim:
Further implementation milestones remain open to stakeholder input: legacy GPAI models must comply by 2 August 2027, and the Commission must publish high-risk classification guidelines by 1 August 2027.

Evidence:
The Future of Privacy Forum timeline says providers of GPAI models placed on the market before 2 August 2025 must comply by 2 August 2027. It adds that the Commission must publish guidelines on Article 6 high-risk classification, plus guidance on Articles 8(2), 9(10) and 17(3), by 1 August 2027. This is a non-accepted host.

Source:
The AI Act implementation timeline: What changes under the AI Omnibus? — https://fpf.org/blog/the-ai-act-implementation-timeline-what-changes-under-the-ai-omnibus/

Finding 6

Claim:
Under the Omnibus, national AI regulatory sandboxes are due by 2 August 2027, a year later than originally scheduled.

Evidence:
Gibson Dunn reports that the agreement postpones the Member State sandbox deadline to 2 August 2027. It also expands real-world testing outside sandboxes to Annex I high-risk systems. This is a non-accepted host.

Source:
EU AI Act Omnibus Agreement — Postponed High-Risk Deadlines and Other Key Changes - Gibson Dunn — https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/

Finding 7

Claim:
Law-firm commentary treats the Omnibus as a timing and streamlining change rather than a substantive reduction in the AI Act's obligations.

Evidence:
Winston Taylor says the Omnibus largely streamlines or clarifies existing rules and does not significantly change compliance obligations, though in limited cases it allows more time. It lists the AI literacy duty under Article 4 as watered down. This is a non-accepted host and an interpretation, not a primary source.

Source:
AI Act rules on high-risk AI delayed as AI Digital Omnibus agreed - Winston Taylor — https://www.winstontaylor.com/insights/ai-act-rules-on-high-risk-ai-delayed-as-ai-digital-omnibus-agreed

Appendix B — Stakeholders

Name	Category	Position	Power	Priority
European Commission (incl. the AI Office)	decision-maker	supportive	high	critical
Council of the EU / Member State governments	decision-maker	supportive	medium	important
European Parliament (IMCO/ LIBE committees and plenary)	decision-maker	neutral	high	important
Bundesnetzagentur (German market surveillance authority under KI-MIG)	external-observer	supportive	medium	important
Bitkom (German digital industry association)	influencer	resistant	medium	monitor
eco – Association of the Internet Industry	external-observer	resistant	medium	important
Digital rights and consumer organisations (e.g. Liberties.EU, vzbv)	external-observer	resistant	medium	monitor
EDPB / EDPS (data protection authorities)	influencer	neutral	medium	monitor
TÜV Verband (conformity assessment and testing community)	gatekeeper	unknown	high	important
CEN-CENELEC (harmonised standards bodies)	affected-party	unknown	low	monitor
Employees, works councils and trade unions (e.g. ver.di)				

Appendix C — Risk Register

ID	Category	Likelihood	Impact	Timeframe
RISK-001	regulatory	medium	moderate	medium-term
RISK-002	regulatory	medium	major	immediate
RISK-003	operational	high	moderate	immediate
RISK-004	reputational	high	moderate	immediate
RISK-005	operational	high	moderate	short-term
RISK-006	financial	low	major	medium-term
RISK-007	strategic	medium	moderate	medium-term
RISK-008	technological	medium	moderate	short-term
RISK-009	regulatory	medium	moderate	short-term
RISK-010	strategic	medium	minor	short-term
RISK-011	human-capital	medium	minor	immediate

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- Understanding the standardisation of the AI Act — https://digital-strategy.ec.europa.eu/en/faqs/understanding-standardisation-ai-act (publication date unknown, accessed 2026-11-04T13:00:08.364Z)
- The enforcement framework of the AI Act — https://digital-strategy.ec.europa.eu/en/policies/enforcement-ai-act (publication date unknown, accessed 2026-11-04T13:00:08.364Z)
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- The General-Purpose AI Code of Practice — https://digital-strategy.ec.europa.eu/en/policies/contents-code-gpai (publication date unknown, accessed 2026-11-04T13:01:45.270Z)
- Targeted consultation on the draft guidelines for the classification of high-risk artificial intelligence systems — https://digital-strategy.ec.europa.eu/en/consultations/targeted-consultation-draft-guidelines-classification-high-risk-artificial-intelligence-systems (publication date unknown, accessed 2026-11-04T13:03:34.598Z)
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Sourcing Report

Policy: strict
Total items: 47
OK: 14 · stale: 0 · untrusted: 16 · duplicated: 2 · missing: 15
Freshness unknown (no publication date): 24
Requester-provided, not sourceable: 7

Warnings:

- [research] untrusted: https://www.whitecase.com/insight-alert/eu-agrees-digital-omnibus-deal-simplify-ai-rules — host 'www.whitecase.com' matches no entry in allow-list
- [research] untrusted: https://fpf.org/blog/the-ai-act-implementation-timeline-what-changes-under-the-ai-omnibus/ — host 'fpf.org' matches no entry in allow-list
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- [research] untrusted: https://www.winstontaylor.com/insights/ai-act-rules-on-high-risk-ai-delayed-as-ai-digital-omnibus-agreed — host 'www.winstontaylor.com' matches no entry in allow-list
- [stakeholder] duplicate: https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act vs [research] https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act
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- [stakeholder] untrusted: https://annexops.com/ki-mig-germany-ai-act-implementation-law/ — host 'annexops.com' matches no entry in allow-list
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- [stakeholder] 'CEN-CENELEC (harmonised standards bodies)' SOURCE_MISSING — A public CEN-CENELEC statement or accepted-host page documenting its position on the AI Act harmonised-standards timetable and the Omnibus; the search was not run for this stakeholder.
- [stakeholder] 'Employees, works councils and trade unions (e.g. ver.di)' SOURCE_MISSING — A ver.di or other union statement on the AI Act / AI Omnibus; the search returned no verdi.de or union-specific results.
- [risk] untrusted: https://www.cencenelec.eu/news-events/news/2026/newsletter/ots-77-etuc/ — host 'www.cencenelec.eu' matches no entry in allow-list
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- [risk] duplicate: https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715 vs

[stakeholder] https://www.liberties.eu/en/stories/ai-omnibus-ep-vote/45715

- [risk] RISK-004 .impact_evidence SOURCE_MISSING — Evidence on the measured reputational, customer or investor cost to a company named in civil-society criticism of its AI Act lobbying. No search result in this run covered it.
- [risk] RISK-005 .impact_evidence SOURCE_MISSING — Documented cost or delay to companies from divergent national AI Act enforcement. No search result in this run quantified it.
- [risk] RISK-006 .likelihood_evidence SOURCE_MISSING — Precedent of AI Act fines actually imposed on large companies under the prohibited-practices tier. No search result in this run documented any.
- [risk] untrusted: https://www.regulation-ai.eu/en/penalties/ — host 'www.regulation-ai.eu' matches no entry in allow-list
- [risk] RISK-007 .likelihood_evidence SOURCE_MISSING — Official Commission status or consultation timetable for the Article 6 classification guidelines. This run did not retrieve it; the date comes from earlier research on a non-accepted host.
- [risk] RISK-007 .impact_evidence SOURCE_MISSING — Evidence of the cost to companies of reclassifying systems as high-risk after guidance publication. No search result in this run addressed it.
- [risk] untrusted: https://realaw.blog/2025/11/28/from-consensus-to-exceptionality-what-the-eus-ai-standards-crisis-reveals-about-delegated-technical-governance-by-marta-cantero-gamito/ — host 'realaw.blog' matches no entry in allow-list
- [risk] RISK-008 .impact_evidence SOURCE_MISSING — Evidence on rework costs for companies after harmonised standards were revised or contested. No search result in this run covered it.
- [risk] untrusted: https://dig.watch/updates/digital-omnibus-eu-ai-act-new-ai-office-powers — host 'dig.watch' matches no entry in allow-list
- [risk] RISK-009 .impact_evidence SOURCE_MISSING — Examples of EDPB/EDPS enforcement or guidance limiting AI training or bias-detection data use. No search result in this run covered it.
- [risk] untrusted: https://www.liberties.eu/en/stories/omnibus-ai3/45707 — host 'www.liberties.eu' matches no entry in allow-list
- [risk] RISK-010 .impact_evidence SOURCE_MISSING — Evidence on how outdated corporate position papers affect company standing with regulators. No search result in this run addressed it.
- [risk] RISK-011 .likelihood_evidence SOURCE_MISSING — A ver.di or works-council statement on AI Act implementation, and a source on co-determination over AI tools. No search result in this run supplied either.
- [risk] RISK-011 .impact_evidence SOURCE_MISSING — Documented cases of works-council objections delaying AI deployments in Germany. No search result in this run addressed it.
- [research] finding[42] SOURCE_MISSING — [CRIT-003] This is an internal inconsistency between the brief's own sections (our-position vs counter-arguments-addressed and the RISK-001 mitigation). No external source applies.
- [research] finding[44] SOURCE_MISSING — [CRIT-005] Requester-specific facts (role, coalition commitments, prior statements) that cannot be established from public sources; the brief itself lists them as requester-provided.
- [research] finding[46] SOURCE_MISSING — [CRIT-007] Evidence on whether civil-society groups name companies for trade-association AI Act lobbying despite moderate standalone positions; not retrieved in this run.

Untrusted citations:

- [options] OPT-B cites an untrusted domain: https://srnnews.com/artificial-intelligence-rules-

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- [adversarial] CRIT-002 cites an untrusted domain: https://jtc21.eu/en-18286-becomes-the-first-harmonised-standard-under-the-eu-ai-act/ — host 'jtc21.eu' matches no entry in allow-list
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Praxis briefing · Draft our corporate position on the incoming AI regulator…

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